

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                                                                                               |                           |                                                                                                                                                                                                                       |
|---------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------|---------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Shevani Patel                    | Team:<br>Squad #03                                                                                                            | CCRB Case #:<br>201502710 | <input type="checkbox"/> Force <input type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input checked="" type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Sunday, 04/05/2015 7:10 PM    | Location of Incident:<br>Beach 67th Street between Beach Channel Drive and Thursby Avenue and the 100th Precinct stationhouse | 18 Mo. SOL<br>10/5/2016   | Precinct:<br>100                                                                                                                                                                                                      |
| Date/Time CV Reported<br>Fri, 04/10/2015 11:35 AM | CV Reported At:<br>CCRB                                                                                                       | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Fri, 04/10/2015 11:35 AM                                                                                                                                                                |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |
|             |              |

| Subject Officer(s)   | Shield | TaxID  | Command |
|----------------------|--------|--------|---------|
| 1. POM Nicholas Ripa | 25264  | 951144 | 100 PCT |
| 2. POM Eric Cabrera  | 23535  | 938142 | 100 PCT |

| Officer(s)            | Allegation                                                                                                                                       | Investigator Recommendation |
|-----------------------|--------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Nicholas Ripa | Off. Language: On Beach 67th Street between Beach Channel Drive and Thursby Avenue, PO Nicholas Ripa made remarks to § 87(2)(b) based upon race. | A . Unsubstantiated         |
| B . POM Eric Cabrera  | Abuse: At the 100th Precinct stationhouse, PO Eric Cabrera threatened to issue summonses to § 87(2)(b)                                           | B . Unsubstantiated         |

### Case Summary

On April 5, 2015, at approximately 7:10 p.m., § 87(2)(b) was riding his bike when he was stopped by PO Nicholas Ripa and PO Erik Cabrera of the 100<sup>th</sup> Precinct on Beach 67<sup>th</sup> Street between Beach Channel Drive and Thursby Avenue in Queens. § 87(2)(b) alleged that PO Ripa said, “Nigga, I arrested you once” (**Allegation A**). § 87(2)(b) was arrested for § 87(2)(b)

He was taken back to the 100<sup>th</sup> Precinct stationhouse. § 87(2)(b) alleged that he was placed into a cell where PO Cabrera told him, “Any time I see you driving, I’m going to ticket you” (**Allegation B**).

### Mediation, Civil and Conviction Histories

- On April 14, 2015, § 87(2)(b) was presented with mediation. He opted to have his case investigated. On April 29, 2015, a FOIL request for a Notice of Claim filed with regard to this incident was sent to the Office of the Comptroller. Notification will be added to the case file upon receipt. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

### Civilians and Officers CCRB Histories

- This is the first complaint filed by § 87(2)(b) (Board Review 02).
- PO Ripa has been a member of the NYPD for three years. This is the first CCRB allegation made against him.
- PO Cabrera has been a member of the NYPD for nine years. This is the first CCRB allegation made against him.

### Investigative Findings and Recommendations

#### Allegations Not Pleaded

- § 87(2)(g)

**Allegation A – Offensive Language: On Beach 67th Street between Beach Channel Drive and Thursby Avenue, PO Nicholas Ripa made remarks to § 87(2)(b) based upon race.**

**Allegation B – Abuse of Authority: At the 100th Precinct stationhouse, PO Eric Cabrera threatened to issue summonses to § 87(2)(b)**

§ 87(2)(b) alleged that when the officers were attempting to pull him over, PO Ripa said, “Nigga, I arrested you once.” § 87(2)(b) remembered PO Ripa from an arrest a few years prior. § 87(2)(b) also alleged that at the 100<sup>th</sup> Precinct stationhouse, he was placed into a cell and PO Cabrera said, “Any time I see you driving, I’m going to ticket you.” § 87(2)(b) a man who § 87(2)(b) knows from around the neighborhood, provided a telephone statement (Board Review 07). He came outside after § 87(2)(b) had been stopped. At no point while § 87(2)(b) was present did officers use offensive language towards § 87(2)(b). According to PO Ripa, he recognized § 87(2)(b) from a prior incident, and asked, “Do I recognize you?”, “Do I know you?”, or “Have I seen you before?” PO Ripa denied making that statement to § 87(2)(b) or making any remarks regarding § 87(2)(b)’s race. PO Cabrera stated that he and PO Ripa escorted § 87(2)(b) to the cells. He denied making the alleged statement and or threatening to issue § 87(2)(b) summonses. Neither officer corroborated either allegation. § 87(2)(b) was not

present during either alleged statement. § 87(2)(g) . It is therefore recommended that **Allegations A and B be closed as unsubstantiated.**

---

Team: \_\_\_\_\_

|               |           |       |       |
|---------------|-----------|-------|-------|
| Investigator: | _____     | _____ | _____ |
|               | Signature | Print | Date  |

|             |                 |       |       |
|-------------|-----------------|-------|-------|
| Supervisor: | _____           | _____ | _____ |
|             | Title/Signature | Print | Date  |

|           |                 |       |       |
|-----------|-----------------|-------|-------|
| Reviewer: | _____           | _____ | _____ |
|           | Title/Signature | Print | Date  |

|           |                 |       |       |
|-----------|-----------------|-------|-------|
| Reviewer: | _____           | _____ | _____ |
|           | Title/Signature | Print | Date  |